

		Plaintiffs have complied with California Rules of Court, rule 3.1324, subdivision (b). Plaintiffs' counsel states the effect of the amendment, why the amendment is necessary and proper, when facts giving rise to the amended allegations were known, and why amendment was not sought earlier. (English Decl., ¶¶ 2-5.) Plaintiff has also included a copy of the amended complaint. (Mot., Ex. B-C.) Thus, Plaintiff has complied with the statutory requirements to move for leave to amend.
7	23-01313302 Carmona vs. Mazella New Tech Corporation	Motion for Summary Judgment and/or Adjudication Cross-Defendant Cal Pac Sheet Metal, Inc. ("Cal Pac") moves for Summary Judgment or, in the alternative, Summary Adjudication as to each of Cross-Complainant Mazzella New Tech Corporation's ("Mazzella") claims alleged in the Cross-Complaint against Cross-Defendant is DENIED. Cal Pac failed to provide Mazzella sufficient notice of the Motion. Code of Civil Procedure section 437c, subdivision (a)(2) requires 81 days' notice for a motion for summary judgment, with an additional two court days if the notice is served electronically. (<i>See</i> Code Civ. Proc., § 437c, subd. (a)(2); Cal. Rules Ct., Rule 2.251(h).) This notice period is mandatory; the court has no discretion to shorten the notice period absent the parties' express stipulation (<i>see McMahon v. Superior Court</i> (2003) 106 Cal.App.4th 112, 116; <i>Urshan v. Musicians' Credit Union</i> (2004) 120 Cal.App.4th 758, 763-766); and the court cannot cure a defect in notice by continuing the hearing for the missing number of days (<i>Robinson v. Woods</i> (2008) 168 Cal.App.4th 1258, 1268). In addition, the court cannot "infer[] from silence" the plaintiff's "waiver of the right to the statutorily mandated minimum notice period for summary judgment hearings." (<i>Urshan v. Musicians' Credit Union, supra</i>, 120 Cal.App.4th at p. 768.) Here, Cal Pac's Proof of Service reflects that Defendants served the instant motion by e-mail on 3-13-26. (ROA No. 292.) Since the moving papers were electronically served, Cal Pac was required to serve the papers on or before 3-12-26. Cal Pac has not submitted any evidence to show Mazzella stipulated to shorten the statutory 81-day notice period, and the court record reflects no such stipulation. Clerk is ordered to give notice.
8	23-01309309 Gutierrez vs. General Motors, LLC	Motion for Attorney Fees Plaintiffs Martha L. Gutierrez and Jose A. Moreno's Motion for Attorneys' Fees, Costs, and Expenses is GRANTED in the reduced amount of \$17,136.50. Plaintiffs seek lodestar fees of \$21,101.00, a 0.35 multiplier enhancement of \$7,385.35, \$3,500.00 in anticipated fees, and \$2,193.86 in costs and expenses. Timeliness of motion Defendant General Motors, LLC (GM) contends the motion is untimely as it was filed 189 days after Plaintiffs' filing of a Notice of Settlement.